

Chapter 60 Employment Industrial

60.5 Regulations Applying to the Employment - Industrial Zone Category

60.5.1 General

60.5.1.10 Interpretation

(1) Application of General Regulations Section

The regulations in Section 60.5 apply to all lands, uses, **buildings** and **structures** in the Employment Industrial Zone category.

60.5.1.20 Restrictions

(1) Access to Non-Residential Uses when Adjacent to a Lot in the Residential Zone Category or Residential Apartment Zone Category- Restriction on Sole Access from a Lane or Shared Private Right-of-Way

If a **lot** in the Employment Industrial Zone category does not front on a **street** and has its only **vehicle** access from a **lane** or private right-of-way that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, the **lot** may only be used for **parking spaces**.

60.5.20 Permitted Uses

60.5.20.1 General

(1) Firearm Manufacturing

The making of a firearm or any part of a firearm is not a permitted **manufacturing use** in the Employment Industrial Zone category. [By-law: 1124-2018]

(2) Firearms Manufacturing Interpretation

A gunsmith or **custom workshop** that makes a firearm is a **manufacturing use** and must comply with regulation 60.5.20.1(1).

(3) Firearm Manufacturing for the Entertainment Industry

Despite regulations 60.5.20.1(1) and (2), the making of a firearm or any part of a firearm for use in a motion picture or television show is not a **manufacturing use**.

60.5.30 Lot Requirements

60.5.30.1 General

(1) Employment Industrial Lands Abutting Highway 400 and Highway 404

If a **lot** in the Employment Industrial Zone category abuts Highway 400 or Highway 404:

- (A) the **lot line** and the yard that abut either of these highways is the **front lot line** and **front yard**;
- (B) **loading spaces** and **parking spaces** are permitted in a **side yard** or **rear yard** that abuts a **street**;
- (C) **open storage** may be located in a yard that abuts a **street** if it complies with the use conditions for **open storage** found in each zone of the Employment Industrial Zone category.

60.5.40 Principal Building Requirements

60.5.40.1 General

(1) Building Requirements

Additional **building** requirements are in each zone in the Employment Industrial Zone category.

(2) Access Restrictions if Lot is Separated from Residential Lots by a Lane or a Narrow Street

In the Employment Industrial Zone category, if a **lot** has a **rear lot line** or **side lot line** that is separated from a **lot** in the Residential Zone category or Residential Apartment Zone category by a **lane** or a **street** with a right of way width less than 12.0 metres, pedestrian access to any entrance to a **building** on that **lot** may not be from that **lane** or **street** unless it is:

- (A) a service entrance, or
- (B) an entrance or exit required by Federal or Provincial statutes or regulations.

60.5.40.10 Height

(1) Determining the Height of Buildings in the Employment Industrial Zone Category

In the Employment Industrial Zone category, the height of a **building** is the distance between the average elevation of the ground along the **front lot line** and the highest point of the **building**.

(2) Determining the Height of Structures in Employment Industrial Zones

In the Employment Industrial Zone category, the height of a **structure** that is not a **building** is the distance between **average grade** and the elevation of the highest point of that **structure**.

(3) Height of Structures - Chimney Stacks, Scrubbers and Pollution Abatement Equipment

In the Employment Industrial Zone category:

- (A) the following **structures** may exceed the permitted maximum height for a **building**:
 - (i) free-standing or roof-top chimney stacks;
 - (ii) scrubbers; or
 - (iii) other pollution abatement equipment; and
- (B) the following **structures** on the roof of a **building**, may exceed the permitted maximum height for that **building** by 5.0 metres:
 - (i) antennae;
 - (ii) flagpoles; or
 - (iii) satellite dishes.

(4) Height of Elements for Functional Operation of a Building

In the Employment Industrial Zone category, the following equipment, **structures** and parts of a **building** on the roof of a **building** may exceed the permitted maximum height for that **building** by 5.0 metres, subject to regulation 60.5.40.10(5):

- (A) equipment used for the functional operation of the **building**, such as electrical, utility, mechanical and ventilation equipment;
- (B) **structures** or parts of the **building** used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, elevator shafts, chimneys, vents, and water supply facilities; and
- (C) **structures** that enclose, screen or cover equipment, **structures** and parts of the **building** listed in regulations (A) and (B) above.

(5) Height - Horizontal Limits on Elements for Functional Operation of a Building

In the Employment Industrial Zone category, equipment, **structures** or parts of a **building** exceeding the permitted maximum height for a **building** in regulation 60.5.40.10(4), must comply with the following:

- (A) the total area of all equipment, **structures** and parts of a **building** together may cover no more than 30% of the area of the roof, measured horizontally; and
- (B) for equipment, **structures** and parts of a **building** located within 6.0 metres of a **lot line** abutting a **street**, their total horizontal dimension, measured parallel to the **street**, may not exceed 20% of the width of the **building's main walls** facing that **street**.

(6) Height of Rooftop Amenity Space Safety and Wind Protection

In the Employment Industrial Zone category, unenclosed **structures** providing safety or wind protection to rooftop **amenity space** may exceed the permitted maximum height for that **building** by 3.0 metres, if the **structures** are no closer than 2.0 metres from the interior face of any **main wall**.

60.5.40.40 Floor Area

(1) Gross Floor Area Calculations for a Non-residential Building in a Employment Industrial Zone Category

In the Employment Industrial Zone category the **gross floor area** of a **non-residential building** is reduced by the area in the **building** used for:

- (A) parking, loading and bicycle parking below-ground;
- (B) required **loading spaces** at the ground level and required **bicycle parking spaces** at or above-ground;
- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) voids at the level of each floor with a **manufacturing use**;
- (E) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (F) elevator shafts, ventilation duct, utility shafts;
- (G) utility areas, catwalks, service platforms and a mechanical penthouse; and
- (H) exit stairwells and escalators in the **building**.

(2) Floor Space Index Calculation in the Employment Industrial Zone Category

In the Employment Industrial Zone category the floor space index for a **non-residential building** is the result of the **gross floor area** minus the areas listed in regulation 60.5.40.40(1) divided by the area of the **lot**.

60.5.40.41 Floor Area Exemptions

(1) Permitted Floor Space Index for Lawfully Existing Buildings

In the Employment Industrial Zone category, if the **lawful gross floor area** of **lawfully existing buildings** on a **lot** results in a floor space index greater than the permitted maximum floor space index, that **lawful** floor space index resulting from those **lawfully existing buildings** on that **lot** is the maximum floor space index for those **lawfully existing buildings** on that **lot**.

60.5.40.60 Permitted Encroachments

(1) Canopies and Awnings

In the Employment Industrial Zone category, a canopy, awning or similar **structure**, with or without structural support, may encroach into a required minimum **building setback** that abuts a **street**, if no part of the canopy, awning or similar **structure** is more than 5.0 metres above the elevation of the ground directly below it.

60.5.40.70 Setbacks

(1) Building or Structure to be Set Back from a Lane

A **building** or **structure** in the Employment Industrial Zone category may be:

- (A) no closer than 3.0 metres from the original centreline of a **lane** if the **lot** abutting the other side of the **lane** is not in the Residential Zone category, Residential Apartment Zone Category or Open Space Zone category; and
- (B) no closer than 3.5 metres from the original centreline of a **lane** if the **lot** abutting the other side of the **lane** is in the Residential Zone category, Residential Apartment Zone Category or Open Space Zone category.

60.5.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Building from a Lane

In the Employment Industrial Zone category, if the **lawful** distance of a **lawfully existing building or structure** from the original centreline of a **lane** is less than the required minimum distance from the original centreline of the **lane**, that **lawful** distance is the minimum distance from the original centreline of the **lane** for that **lawfully existing building or structure**.

(2) Additions Above Lawfully Existing Buildings in Relation to a Lane

The required minimum distance from the original centreline of a **lane** for any addition or extension above a **lawfully existing building or structure** referred to in regulation 60.5.40.71(1) is the minimum distance from the original centreline of the **lane** permitted by regulation 60.5.40.71(1).

60.5.50 Yards

60.5.50.10 Landscaping

(1) Fence Requirement When Abutting a Lot in the Residential Zone Category or Residential Apartment Zone Category

If a **lot** in the Employment Industrial Zone category abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category, a fence must be installed along the part of the **lot line** that abuts the **lot** in the Residential Zone category or the Residential Apartment Zone category.

(2) Landscaping Requirement when Abutting a Lot in the Residential Zone Category or Residential Apartment Zone Category

If a **lot** in the Employment Industrial Zone category abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, a minimum 7.5 metre wide strip of **landscaping** must be provided along the part of the **lot line** that abuts the **lot** in the Residential Zone category or Residential Apartment Zone category.

60.5.75 Energy Regulations

60.5.75.1 General

(1) Renewable Energy Device - Location Restriction

In the Employment Industrial Zone category, a device producing **renewable energy** may not be in a **front yard** or **side yard** that abuts a **street**.

(2) Renewable Energy Device - Height Requirements

In the Employment Industrial Zone category, a photovoltaic **solar energy** device or a thermal **solar energy** device that is:

(A) on a **building**:

- (i) must comply with the required minimum **building setbacks** for a **building** on the **lot**; and
- (ii) no part of the device may be higher than 3.0 metres above the permitted maximum height for the **building**; and

(B) ground mounted, must comply with the requirements for a **building or structure** on the **lot**.

(3) Wind Energy Device - Setbacks

In the Employment Industrial Zone category, a **wind energy** device must comply with the required minimum **building setbacks** for a **building** on the **lot**.

(4) Wind Energy Device - Height

In the Employment Industrial Zone category, no part of a **wind energy** device may exceed the permitted maximum height for a **building** by:

(A) 3.0 metres if:

- (i) it is on a **lot** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; or
 - (ii) the **building** is less than 15.0 metres in height; and
- (B) 20.0 metres in all other cases.

(5) Geo-energy Device Requirements

In the Employment Industrial Zone category, any above-ground part of a **geo-energy** device must comply with the requirements for a **building** or **structure** on a **lot**.

(6) Cogeneration Device

In the Employment Industrial Zone category, a **cogeneration energy** device may be outside a **building** on the same **lot** if it:

- (A) is not in a **street yard**; and
- (B) complies with the required minimum **building setbacks** for a **building**.

60.5.80 Parking

60.5.80.1 General

(1) Calculation of Parking Space Rates for Manufacturing Uses

For the purpose of calculating the number of required **parking spaces** for a **manufacturing use** on a **lot** in the Employment Industrial Zone category, the **gross floor area** of a **building** used for a **manufacturing use**, is reduced by the floor area in the **building** used for the following:

- (A) parking, loading and bicycle parking;
- (B) **vehicle** access to a **parking space** or a **loading space**;
- (C) storage rooms or washrooms located in the **basement**;
- (D) voids at the level of each floor with a **manufacturing use**;
- (E) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (F) elevator shafts, ventilation duct, utility shafts;
- (G) utility areas, catwalks, service platforms and a mechanical penthouse; and
- (H) exit stairwells and escalators in the **building**.

(2) Required Parking Space

In the Employment Industrial Zone category, a **parking space** required by this By-law must be available for the use for which it is required.

60.5.80.10 Location

(1) Parking in Street Yard

In the Employment Industrial Zone category a **parking space** in a **street yard** is subject to the following:

- (A) the **parking space** must be at least 3.0 metres from the **front lot line** and **side lot lines**; and
- (B) the **parking space** must be at a right angle to the **driveway** that provides **vehicle** access from the **street** to a parking area. [By-law: 89-2022]

(2) Location of Parking Spaces

In the Employment Industrial Zone category a **parking space** may be:

- (A) in a **front yard** or a **side yard** that abuts a **street**, if there are no more than 5 **parking spaces** for the first 15.0 metres of **main wall** and thereafter 2 **parking spaces** for each additional 15.0 metres of **main wall** that abuts the yard containing the **parking spaces**;
- (B) in a **side yard** that does not abut a **street**; and

(C) in a **rear yard**.

(3) Location of Required Parking Spaces

A **parking space** must be on the same **lot** as the use for which the **parking space** is required.

60.5.80.11 Location Exemptions

(1) Parking Location Off-site Parking Exemption

If required **parking spaces** for a **lawfully existing building** are **lawfully** located on a **lot** that is not the same **lot** as the use for which the **parking spaces** are required, those **lawful parking spaces** may continue to be provided on another **lot** for that **lawfully existing building**.

(2) Parking Location - Front Yard and Side Yard Parking Exemption

If a **lawfully existing building** has **lawful parking spaces** in the **front yard** or **side yard**, regulation 60.5.80.10(1) and (2) does not apply to those **lawful parking spaces**.

60.5.80.20 Setbacks

(3) Building Setback from a Lot in the Residential Zone category or Residential Apartment Zone category

In the Employment Industrial Zone category a **parking space** and **drive aisle** must be at least 7.5 metres from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

60.5.90 Loading

60.5.90.1 General

(1) Calculation of Loading Space Rates for Manufacturing Uses

For the purpose of calculating the number of required **loading spaces** for a **manufacturing use** on a **lot** in the Employment Industrial Zone category, the **gross floor area** of a **building** used for a **manufacturing use** is reduced by the area in the **building** used for the following:

- (A) parking, bicycle parking and a loading;
- (B) **vehicle** access to a **parking space** or **loading space**;
- (C) storage rooms or washrooms located in the **basement**;
- (D) voids at the level of each floor with a **manufacturing use**;
- (E) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (F) elevator shafts, ventilation duct, utility shafts;
- (G) utility areas, catwalks, service platforms and a mechanical penthouse; and
- (H) exit stairwells and escalators in the **building**.

60.5.100 Access to Lot

60.5.100.1 General

(1) Driveway Widths

In the Employment Industrial Zone category a **driveway** may have:

- (A) a minimum width of 6.0 metres; and
- (B) a maximum width of 11.0 metres for a minimum depth of 3.0 metres measured from the **lot line** abutting the **street**.

60.5.100.10 Location

(1) Driveway Access Through Landscaping

In the Employment Industrial Zone category a **driveway** may cross a required **landscaping** area.

(2) Access Location if Abutting a Lot in the Residential Zone Category or Residential Apartment Zone Category

If a **lot** in the Employment Industrial Zone category abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, **vehicle** access to the **lot** may not be over any part of a **lot** in the Residential Zone category or Residential Apartment Zone category.

(3) Access to Loading Restrictions Adjacent to a Lot in the Residential Zone Category or Residential Apartment Zone Category

If a **lot** in the Employment Industrial Zone category abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, **vehicle** access to the **loading space** may not be over any part of a **lot** in the Residential Zone category or Residential Apartment Zone category.

60.10 Employment Light Industrial Zone (EL)

60.10.1 General

60.10.1.10 Interpretation

(1) Application of This Section

The regulations in Section 60.10 apply to all lands, uses, **buildings** and **structures** in the EL zone.

(2) Interpretation of the Employment Light Industrial Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Employment Light Industrial Zones consists of the letters EL indicating the primary land use permitted in the respective zone.

(3) Interpretation of the EL Zone Label

In the EL zone, the numerical value following the zone symbol in the zone label indicates the permitted maximum floor space index of all land uses on a **lot**.

60.10.20 Permitted Uses

60.10.20.1 General

(1) Lawfully Existing Place of Worship

In the EL zone, a **lawfully existing place of worship** is permitted if it is on a **lot** with a **front lot line** or **side lot line** abutting a major **street** on the Policy Area Overlay Map; and

(A) any expansion or addition to the **place of worship building** complies with Section 150.50 and the requirements for the EL zone; and

(B) it may be replaced with a new **place of worship building** that complies with Section 150.50 and the requirements for the EL zone.

(2) Sorting Activities in an Enclosed Building

In the EL zone, the separating or sorting of **recyclable materials** must take place within a wholly enclosed **building**.

60.10.20.10 Permitted Use

(1) Use - EL Zone

In the EL zone, the following uses are permitted:

Ambulance Depot

Artist Studio

Automated Banking Machine

Bindery

Carpenter's Shop

Cold Storage

Custom Workshop

Dry Cleaning or Laundry Plant

Financial Institution

Fire Hall

Industrial Sales and Service Use

Laboratory

Office

Park

Performing Arts Studio

Police Station

Production Studio

Self-storage Warehouse
Service Shop
Warehouse
Wholesaling Use

60.10.20.20 Permitted Use - with Conditions

(1) Use with Conditions - EL Zone

In the EL zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 60.10.20.100:

Apparel and Textile **Manufacturing Use** (9)
Beverage **Manufacturing Use** (9)
Cogeneration Energy (17)
Contractor's Establishment (7)
Crematorium (21)
Eating Establishment (6,14)
Education Use (4)
Food **Manufacturing Use** (9, 10)
Furniture **Manufacturing Use** (9)
Metal Products **Manufacturing Use** (9)
Open Storage (12)
Outdoor Patio (11)
Plastic Product **Manufacturing Use** (9)
Printing Establishment (8)
Public Utility (16,18)
Recreation Use (1,3)
Renewable Energy (17)
Retail Store (5)
Software Development and Processing (2)
Take-out Eating Establishment (6)
Transportation Use (19) [By-law: 1198-2019]

60.10.20.100 Conditions

(1) Recreation Use

In the EL zone, a golf driving range is a permitted **recreation use** if:

- (A) the **lot** is at least 70.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category; and
- (B) there is a fence between the golf driving range and all **lot lines**.

(2) Software Development and Processing

In the EL zone, the **interior floor area** of a **software development and processing** use may not exceed 5,000 square metres.

(3) Recreation Use

In the EL zone, a **recreation use** must be on a **lot** that fronts a major **street** on the Policy Areas Overlay Map.

(4) Education Use

In the EL zone, **education use** is subject to the following:

- (A) the use may only be for:
 - (i) technical and trade skills development for the operation and use of manufacturing equipment and machinery; or
 - (ii) driver education for commercial or construction **vehicles** such as trucks, tractor trailers and fork lifts; and
- (B) the total interior floor space used for an **education use** may not exceed the lesser of:

- (i) a floor space index of 0.5; or
- (ii) the permitted maximum floor space index in the zone label on the Zoning By-law Map.

(5) Retail Store – together with Manufacturing Use

In the EL zone, a **retail store**:

- (A) must be associated with a permitted **manufacturing use** on the same **lot**; and
- (B) the total **interior floor area** of all **retail stores** on a **lot** may not exceed 20 percent of the **gross floor area** of the permitted **manufacturing use**. [By-law: 1198-2019]

(6) Eating Establishment and Take-out Eating Establishment

In the EL zone, the total **interior floor area** of all **eating establishments** and **take-out eating establishments** on a **lot** may not exceed 500.0 square metres. [By-law: 1198-2019]

(7) Contractor's Establishment

In the EL zone, a **contractor's establishment** may not store heavy equipment such as cranes, ploughs, tractors, pile drivers, road making, wrecker's or steel erector's equipment on the **lot**.

(8) Printing Establishment - Interior Floor Area

In the EL zone, the **interior floor area** of a printing establishment use may not exceed 5,000 square metres.

(9) Manufacturing Use - Interior Floor Area

In the EL zone, the **interior floor area** of a **manufacturing use** listed in Clause 60.10.20.20 may not exceed 5,000 square metres.

(10) Food Manufacturing Use

In the EL zone, food **manufacturing use** must be the processing, packaging or baking of foods that are not meats, fish, dairy products, or brewing or pickling of foods.

(11) Outdoor Patio

In the EL zone, an **outdoor patio**:

- (A) must be combined with one of the following uses and be located on the same **lot** or abutting **lot** that permits an **outdoor patio**:
 - (i) **Eating Establishment**;
 - (ii) **Retail Store**; and
 - (iii) **Take-out Eating Establishment**.
- (B) must be no closer to a **lot line** than the required minimum **rear yard setback** or **side yard setback** for a **building**;
- (C) may not be located on land required for **loading spaces**, **driveways**, or **landscaping**;
- (D) may have a maximum area that is the greater of:
 - (i) 50.0 square metres; or
 - (ii) 50 percent of the **interior floor area** of the **premises** it is combined with.
- (E) may be used to provide entertainment such as performances, music and dancing, if it is located on a **lot** abutting a major **street** on the Policy Areas Overlay Map, and provided the **outdoor patio** is not located above the first **storey** of the **building** and the entertainment area does not exceed the greater of 10 percent of the **outdoor patio** area or 5.0 square metres;
- (F) must be set back at least 30.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (G) despite regulation (F) above, an **outdoor patio** located above the first **storey** of the **building**, must be at least 40.0 metres, measured horizontally, from a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (H) in the **rear yard** of a **lot** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category the **outdoor patio** must have a fence installed along the portion of the **outdoor patio** parallel to the **rear lot line**;

- (I) if a **lawfully existing outdoor patio** is closer to a **lot** than required in (F) or (G) above, that **lawful** distance from a **lot** in the Residential Zone category or Residential Apartment Zone category is the minimum distance for that **lawfully existing outdoor patio** from that **lot**; and
- (J) is not permitted on a **lot** located in the area bounded by Laird Avenue on the west, Vanderhoof Avenue and the Don River to the north, Don Mills Road to the east and Overlea Boulevard to the south. [By-law: 1198-2019]. [By-law: 1153-2023]
- (12) Open Storage
In the EL zone:
- (A) **open storage**:
- (i) must be associated with a permitted use;
 - (ii) may not be in a yard that abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category; [By-law: 1774-2019]
 - (iii) may not be in the **front yard**; [By-law: 1774-2019]
 - (iv) may be no closer than 7.5 metres to any **lot line**;
 - (v) may be no more than 10% of the **lot area**;
 - (vi) may be no higher than the permitted maximum height of a **building** on the **lot**; and
 - (vii) must be enclosed by a fence; and
- (B) **open storage** may be for **recyclable material** and waste.
- (13) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)
- (14) Eating Establishment
In the EL zone, an **eating establishment** must comply with the specific use regulations in Section 150.100.
- (15) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)
- (16) Public Utility
In the EL zone, a **public utility**, must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building**, if it is:
- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
 - (B) a natural gas regulator station.
- (17) Renewable Energy Production or Cogeneration Energy Production
In the EL zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.
- (18) Public Utility
In the EL zone, a **public utility** may not be a sewage treatment plant.
- (19) Transportation Use
A **building** or **structure** on a **lot** in the EL zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.
- (20) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)
- (21) Crematorium
In the EL zone, a **crematorium** must be a minimum of 300 metres from a **lot** that is not in an EL, E, EH or UT zone.

60.10.30 Lot Requirements

60.10.30.20 Lot Frontage

(1) Minimum Lot Frontage for Lots in a EL zone

In the EL zone, the required minimum **lot frontage** is 15.0 metres.

60.10.30.21 Lot Frontage Exemptions

(1) Permitted Lot Frontage for Lawfully Existing Lots

In the EL zone, if the **lawful lot frontage** of a **lawfully existing lot** is less than the required minimum **lot frontage**, that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 60.10.30.21(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

60.10.40 Principal Building Requirements

60.10.40.10 Height

(1) Maximum Height - EL Zone

In the EL zone, if a **lot** is in an area that:

- (A) has a numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is the numerical value following the letters "HT", in metres; or
- (B) has no numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is 18.5 metres.

(2) Height of Buildings and Structures - Green Roof

In the EL zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

60.10.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the EL zone, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height for a **building** or **structure**, that **lawful** height of the **lawfully existing building** or **structure** is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings -- Height

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 60.10.40.11(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

60.10.40.70 Setbacks

(1) Minimum Front Yard Setback for Lots in the EL Zone

In the EL zone, the required minimum **front yard setback** is 6.0 metres.

(2) Minimum Side Yard Setback for Lots in the EL Zone

In the EL zone, the required minimum **building setback** from a **side lot line**:

- (A) that does not abut a **street**, is:
 - (i) 3.0 metres if the **lot frontage** is less than 30.0 metres;
 - (ii) 4.5 metres if the **lot frontage** is from 30.0 metres to less than 60.0 metres; and
 - (iii) 6.0 metres in all other cases; and
- (B) that abuts a **street**, is 6.0 metres.

(3) Minimum Rear Yard Setback for Lots in the EL Zone

In the EL zone, the required minimum **rear yard setback** is 7.5 metres.

(4) Minimum Setback for Lots in the EL Zone if abutting the Residential Zone Category or Residential Apartment Zone Category

In the EL zone:

- (A) the required minimum **building setback** from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category is 15.0 metres; and
- (B) a **structure** that is not a **building** may be no closer than 15.0 metres from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

60.10.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the EL zone, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

- (A) a **front lot line**, that **lawful front yard setback** is the minimum **front yard setback** permitted for that **lawfully existing building** or **structure**;
- (B) a **rear lot line**, that **lawful rear yard setback** is the minimum **rear yard setback** permitted for that **lawfully existing building** or **structure**; or
- (C) a **side lot line**, that **lawful side yard setback** is the minimum **side yard setback** permitted for that **lawfully existing building** or **structure**.

(2) Required Setbacks for Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 60.10.40.71(1) may be set back from the **front lot line**, **rear lot line** or **side lot lines** to the same extent as the **main walls** of the **lawfully existing building** or **structure** or be authorized by a Section 45 Planning Act minor variance. [By-law: 420-2023]

60.10.50 Yards

60.10.50.10 Landscaping

(1) Soft Landscaping - Street Lot Line Requirement

In the EL zone, any **lot line** abutting a **street** must have a minimum 3.0 metre wide strip of **soft landscaping** along the entire length of the **lot line**, excluding lands used for **driveways** and walkways.

60.10.60 Ancillary Buildings and Structures

60.10.60.1 General

(1) Ancillary Building and Structure - Compliance

In the EL zone, **ancillary buildings** and **structures** must comply with the requirements for a **building** or **structure**.

60.10.60.10 Location

(1) Location of Buildings or Structures Used for the Purpose of a Gatehouse, Scale, Weigh-house, Fire Pump House or Other Security Purpose in the EL Zone

In the EL zone, a **building** or **structure** used as a gatehouse, scale, weigh-house, fire pump house or other security purpose is:

- (A) permitted in the **front yard**; and

(B) not subject to required minimum **front yard**, **side yard** and **rear yard building setbacks**.

60.10.80 Parking

60.10.80.1 General

(1) Applicable Parking Rate - Retail Store, Eating Establishment, and Take-out Eating Establishment

In the EL zone, the **parking space** requirement for a **retail store**, **eating establishment**, and **take-out eating establishment**, that is combined with a **manufacturing use**, is calculated at the same rate as the permitted **manufacturing use** located on the **lot**.

60.10.80.20 Setbacks

(1) Parking Space to be Set Back from a Lot Line

A **parking space** not located in a **building** must be at least 0.5 metres from a **lot line**.

60.10.90 Loading

60.10.90.10 Location

(1) Loading Space Location

A **loading space** may not be in:

- (A) a **front yard**;
- (B) a **side yard** abutting a **street**; or
- (C) a **side yard** or **rear yard** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

60.10.90.11 Location Exemptions

(1) Loading Space Location Exemption

If a **lawfully existing building** has a **lawful loading space** that does not comply with the **loading space** location requirements in regulation 60.10.90.10(1), that **lawful loading space** is exempt from the requirements in regulation 60.10.90.10(1).

60.10.90.40 Access to Loading Space

(1) Access to Loading Space on a Lot in the EL Zone

In the EL zone:

- (A) if a **lot** abuts a **lane**, **vehicle** access to a **loading space** must be from the **lane**;
- (B) if a **corner lot** does not abut a **lane** and it has at least one **lot line** abutting a **street** which is not a major **street** on the Policy Areas Overlay Map, **vehicle** access to a **loading space** must be from the **street** which is not a major **street**; and
- (C) if a **lot** is not a **lot** described in (A) or (B), **vehicle** access to a **loading space** may be from the **street** on which the **lot** fronts.

(2) Access Through a Main Wall to a Loading Space

A **loading space** located in a **building** may not have its **vehicle** access through a **main wall** that faces a **street**.

60.10.90.41 Access to Loading Space Exemptions

(1) Existing Access to Loading Space Exemption for Buildings on Lots in the EL Zone

In the EL zone, if a **lawfully existing building** has a **lawful** access to a **loading space** that does not comply with regulation 60.10.90.40(1) or Article 220.5.20, that **lawful** access is permitted.

(2) Access Through a Main Wall to a Loading Space Exemption

If a **lawfully existing building** has a **lawful** entrance to a **loading space** in a **main wall** that faces a **street**, that **lawful** entrance to the **loading space** is exempt from regulation 60.10.90.40(2).

60.20 Employment Industrial Zone (E)

60.20.1 General

60.20.1.10 Interpretation

(1) Application of This Section

The regulations in Section 60.20 apply to all lands, uses, **buildings** and **structures** in the E zone.

(2) Interpretation of the Employment Industrial Zone Symbol

The zone symbol on the Zoning By-law Map for Employment Industrial Zones consists of the letter E indicating the primary land use permitted in the respective zone.

(3) Interpretation of the E Zone Label

In the E zone, the numerical value following the zone symbol in the zone label indicates the permitted maximum floor space index of all land uses on a **lot**.

60.20.20 Permitted Uses

60.20.20.1 General

(1) Lawfully Existing Place of Worship

In the E zone, a **lawfully existing place of worship** is permitted if it is on a **lot** with a **front lot line** or **side lot line** abutting a major **street** on the Policy Area Overlay Map; and

(A) any expansion or addition to the **place of worship building** must comply with Section 150.50 and the requirements for the E zone; and

(B) it may be replaced with a new **place of worship building** if it complies with Section 150.50 and the requirements for the E zone.

(2) Sorting Activities in an Enclosed Building

In the E zone, the separating or sorting of **recyclable materials** must take place within a wholly enclosed **building**.

60.20.20.10 Permitted Use

(1) Use - E Zone

In the E zone, the following uses are permitted:

Ambulance Depot
Animal Shelter
Artist Studio
Automated Banking Machine
Bindery
Building Supply Yards
Carpenter's Shop
Cold Storage
Contractor's Establishment
Custom Workshop
Dry Cleaning or Laundry Plant
Financial Institution
Fire Hall
Industrial Sales and Service Use
Kennel
Laboratory
All **Manufacturing Uses** except:

- 1) Abattoir, Slaughterhouse or Rendering of Animals Factory;
 - 2) Ammunition, Firearms or Fireworks Factory;
 - 3) Asphalt Plant;
 - 4) Cement Plant, or Concrete Batching Plant;
 - 5) Crude Petroleum Oil or Coal Refinery;
 - 6) Explosives Factory;
 - 7) **Industrial Gas Manufacturing;**
 - 8) Large Scale Smelting or Foundry Operations for the Primary Processing of Metals;
 - 9) **Pesticide or Fertilizer Manufacturing;**
 - 10) **Petrochemical Manufacturing;**
 - 11) Primary Processing of Gypsum;
 - 12) Primary Processing of Limestone;
 - 13) Primary Processing of Oil-based Paints, Oil-based Coatings or Adhesives;
 - 14) Pulp Mill, using pulpwood or other vegetable fibres;
 - 15) **Resin, Natural or Synthetic Rubber Manufacturing;**
 - 16) Tannery
- Office
Park
Performing Arts Studio
Pet Services
Police Station
Printing Establishment
Production Studio
Public Works Yard
Service Shop
Software Development and Processing
Warehouse
Wholesaling Use [By-law: OMB PL130592]

60.20.20.20 Permitted Use - with Conditions

(1) Use with Conditions - E Zone

In the E zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 60.20.20.100:

- Body Rub Service** (32)
Cogeneration Energy (26)
Crematorium (33)
Drive Through Facility (5,21)
Eating Establishment (1,19,30)
Marihuana production facility (2)
Metal Factory involving Forging and Stamping (25)
Open Storage (10)
Outdoor Patio (9)
Public Utility (27,29)
Recovery Facility (8)
Recreation Use (7)
Renewable Energy (26)
Retail Service (3)
Retail Store (4,30)
Shipping Terminal (11)
Take-out Eating Establishment (1,30)
Transportation Use (28)
Vehicle Depot (6)
Vehicle Fuel Station (16,30)
Vehicle Repair Shop (23)
Vehicle Service Shop (17,31)
Vehicle Washing Establishment (18) [By-law: 0403-2014] [By-law: 1124-2018] [By-law: 1198-2019]

60.20.20.100 Conditions

(1) Eating Establishment and Take-out Eating Establishment

In the E zone, the total **interior floor area** of all **eating establishments** and **take-out eating establishments** on a **lot** may not exceed 500.0 square metres. [By-law: 1198-2019]

(2) Marihuana Production Facility

In the E zone, a **marihuana production facility** must comply with the specific use regulations in Section 150.60.

[By-law: 0403-2014] [By-law: 1124-2018]

(3) Retail Service

In the E zone, the total **interior floor area** of **retail services** on a **lot** may not exceed the greater of:

(A) 300.0 square metres; or

(B) 10 percent of the **gross floor area** of the **buildings** on the **lot** to a maximum of 500.0 square metres.

[By-law: 1198-2019]

(4) Retail Store - together with Manufacturing Use

In the E zone, a **retail store**:

(A) must be associated with a permitted **manufacturing use** on the same **lot**; and

(B) the total **interior floor area** of all **retail stores** on a **lot** may not exceed 20 percent of the **gross floor area** of the permitted **manufacturing use**. [By-law: 1198-2019]

(5) Drive Through Facility

In the E zone, a **drive through facility** must be on a **lot** that fronts on a major **street** on the Policy Areas Overlay Map.

(6) Vehicle Depot

In the E zone, a **vehicle depot** must be on a **lot** that is at least 70 metres from a **lot** in the Residential Zone category or the Residential Apartment Zone category.

(7) Recreation Use

In the E zone, a **recreation use** must be on a **lot** that fronts a major **street** on the Policy Areas Overlay Map.

(8) Recovery Facility

In the E zone, a **recovery facility**:

(A) may not be:

(i) an asphalt **recovery facility**;

(ii) a concrete **recovery facility**;

(iii) a heavy metal **recovery facility** (arsenic, lead, mercury and cadmium);

(iv) a hazardous chemical **recovery facility**;

(v) a petrochemical **recovery facility**;

(vi) an industrial gas **recovery facility**;

(vii) a rubber **recovery facility**; and

(viii) an asbestos **recovery facility**;

(B) must be located at least 70.0 metres from a **lot** in the Residential Zone category or the Residential Apartment Zone category; and

(C) the separating or sorting of materials must be within a wholly enclosed **building**.

(9) Outdoor Patio

In the E zone, an **outdoor patio**:

(A) must be combined with one of the following uses and located on the same **lot** or abutting **lot** that permits an **outdoor patio**:

(i) **Eating Establishment**;

(ii) **Retail Store**; and

(iii) **Take-out Eating Establishment.**

- (B) must be no closer to a **lot line** than the required minimum **rear yard setback** or **side yard setback** for a **building**;
- (C) may not be located on land required for **loading spaces, driveways, or landscaping**;
- (D) may have a maximum area that is the greater of:
 - (i) 50.0 square metres; or
 - (ii) 50 percent of the **interior floor area** of the **premises** it is combined with.
- (E) may be used to provide entertainment such as performances, music and dancing, if it is located on a **lot** abutting a major **street** on the Policy Areas Overlay Map, and provided the **outdoor patio** is not located above the first **storey** of the **building** and the entertainment area does not exceed the greater of 10 percent of the **outdoor patio** area or 5.0 square metres;
- (F) must be set back at least 30.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (G) despite regulation (F) above, an **outdoor patio** located above the first **storey** of the **building**, must be at least 40.0 metres, measured horizontally, from a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (H) in the **rear yard** of a **lot** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category the **outdoor patio** must have a fence installed along the portion of the **outdoor patio** parallel to the **rear lot line**;
- (I) if a **lawfully existing outdoor patio** is closer to a **lot** than required in (F) or (G) above, that **lawful** distance from a **lot** in the Residential Zone category or Residential Apartment Zone category is the minimum distance for that **lawfully existing outdoor patio** from that **lot**; and
- (J) is not permitted on a **lot** located in the area bounded by Laird Avenue on the west, Vanderhoof Avenue and the Don River to the north, Don Mills Road to the east and Overlea Boulevard to the south. [By-law: 1198-2019]. [By-law: 1153-2023]

(10) **Open Storage**

In the E zone:

(A) **open storage:**

- (i) must be associated with a permitted use other than a **recovery facility**;
- (ii) may not be located in a yard that abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category;
- (iii) may not be in the **front yard**;
- (iv) must be a minimum of 7.5 metres from any **lot line**;
- (v) must be less than 30% of the **lot area**;
- (vi) may be no higher than the permitted maximum height of a **building** on the **lot**; and
- (vii) must be enclosed by a fence; and

(B) **open storage may be for recyclable material and waste.**

(11) **Shipping Terminal**

In the E zone, a **shipping terminal** must be on a **lot** that is at least 70.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category.

(12) **(THIS DOES NOT CURRENTLY CONTAIN A REGULATION)**

(13) **(THIS DOES NOT CURRENTLY CONTAIN A REGULATION)**

(14) **(THIS DOES NOT CURRENTLY CONTAIN A REGULATION)**

(15) **(THIS DOES NOT CURRENTLY CONTAIN A REGULATION)**

(16) **Vehicle Fuel Station**

In the E zone, a **vehicle fuel station** must comply with the specific use regulations in Section 150.92.

(17) **Vehicle Service Shop**

In the E zone, a **vehicle service shop** must comply with the specific use regulations in Section 150.94.

(18) Vehicle Washing Establishment

In the E zone, a **vehicle washing establishment** must comply with the specific use regulations in Section 150.96.

(19) Eating Establishment

In the E zone, an **eating establishment** must comply with the specific use regulations in Section 150.100.

(20) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(21) Drive Through Facility

In the E zone, a **drive through facility** must comply with the specific use regulations in Section 150.80.

(22) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(23) Vehicle Repair Shop

In the E zone, a **vehicle repair shop** must be on a **lot** that is at least 100.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category.

(24) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(25) Metal Factory involving Forging and Stamping

In the E zone, a metal factory that involves forging or stamping of metal must be on a **lot** that is at least 70.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category.

(26) Renewable Energy Production or Cogeneration Energy Production

In the E zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(27) Public Utility

In the E zone, a **public utility** may not be a sewage treatment plant.

(28) Transportation Use

A **building** or **structure** on a **lot** in the E zone and used as a **transportation use** must comply with all regulations for a **building** on that **lot**.

(29) Public Utility

In the E zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building**, if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(30) Retail Store and Eating Establishment together with Vehicle Fuel Station

In the E zone:

- (A) a **retail store** on a lot with a **vehicle fuel station** is subject to the following:

- (i) the **retail store** must be a convenience store;
 - (ii) the **interior floor area** of the **vehicle fuel station**, **retail store**, **eating establishment** or **take-out eating establishment** may not exceed 300 square metres; and
 - (iii) the convenience **retail store** may remain on the **lot** as long as the **vehicle fuel station** use exists; and

- (B) For the purposes of regulation (A) above, a convenience store is **premises** where products such as engine oil, washer fluid, road salt, packaged or canned food products, newspapers and magazines are sold.

(31) Vehicle Service Shop - Open Storage

In the E zone, a **vehicle service shop** may have **open storage** if it is:

- (A) less than 20% of the area of the **lot** that is not covered by wholly enclosed **buildings**; and
- (B) enclosed by a fence.

(32) Body Rub Service - Separation Distance

In the E zone, a **lot** that has a **body rub service** must be:

- (A) at least 100.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category; and
- (B) at least 500 metres from a **lot** with a **public school**, **private school**, or **place of worship**, or a **lot** in a IS zone or IPW zone; and
- (C) at least 500 metres from a **lot** that has an **adult entertainment** use or 100 metres from a **lot** that has a **body rub service**.

(33) Crematorium

In the E zone, a **crematorium** must be a minimum of 300 metres from a **lot** that is not in the EL, E, EH or UT zone.

60.20.30 Lot Requirements

60.20.30.20 Lot Frontage

(1) Minimum Lot Frontage for Lots in the E zone

In the E zone, the required minimum **lot frontage** is 20.0 metres.

60.20.30.21 Lot Frontage Exemptions

(1) Permitted Lot Frontage for Lawfully Existing Lots

In the E zone, if the **lawful lot frontage** of a **lawfully existing lot** is less than the required minimum **lot frontage**, that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 60.20.30.21(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance. [By-law: 1774-2019]

60.20.40 Principal Building Requirements

60.20.40.10 Height

(1) Maximum Height - E Zone

In the E zone, if a **lot** is in an area that:

- (A) has a numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of any **building** or **structure** on the **lot** is the numerical value following the letters "HT", in metres; or
- (B) has no numerical value following the letters "HT" on the Height Overlay Map:
 - (i) the permitted maximum height of an office **building**, or portion of a **building** used as office is 20.0 metres; and
 - (ii) no maximum height requirement applies to a **building** that has permitted uses other than an office use.

(2) Height of Buildings and Structures - Green Roof

In the E zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

60.20.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the E zone, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height, that **lawful** height is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings -- Height

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 60.20.40.11(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

60.20.40.70 Setbacks

(1) Minimum Front Yard Setback for Lots in the E Zone

In the E zone, the required minimum **front yard setback** is 3.0 metres.

(2) Minimum Side Yard Setback for Lots in the E Zone

In the E zone, the required minimum **side yard setback** is 3.0 metres.

(3) Minimum Rear Yard Setback for Lots in the E Zone

In the E zone, the required minimum **rear yard setback** is 7.5 metres.

(4) Minimum Building Setback for Lots in the E Zone abutting the Residential Zone Category or Residential Apartment Zone Category

In the E zone:

- (A) the required minimum **building setback** from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category is 15.0 metres; and
- (B) a **structure** that is not a **building** may be no closer than 15.0 metres from a **lot line** that abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category.

(5) Building Setback Exemptions for Loading at Railway Tracks in an E zone

Despite regulations 60.20.40.70(2) and (3), in the E zone, a **building** or **structure** used for loading or unloading of railway cars has no required minimum **building setback** from a **side lot line** or **rear lot line** that abuts the railway right-of-way. [By-law: 1124-2018]

60.20.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the E zone, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

- (A) a **front lot line**, that **lawful building setback** is the minimum **front yard setback** for that **lawfully existing building** or **structure**;
- (B) a **rear lot line**, that **lawful building setback** is the minimum **rear yard setback** for that **lawfully existing building** or **structure**; or
- (C) a **side lot line**, that **lawful building setback** is the minimum **side yard setback** for that **lawfully existing building** or **structure**.

(2) Required Setbacks for Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 60.20.40.71(1) may be set back from the **front lot line**, **rear lot line** or **side lot lines** to the same extent as the **main walls** of the **lawfully existing building** or **structure** be authorized by a Section 45 Planning Act minor variance. [By-law: 420-2023]

60.20.50 Yards

60.20.50.10 Landscaping

(1) Soft Landscaping - Street Lot Line Requirement

In the E zone, any **lot line** abutting a **street** must have a minimum 3.0 metre wide strip of **soft landscaping** along the entire length of the **lot line**, excluding land used for **driveways** and walkways.

60.20.60 Ancillary Buildings and Structures

60.20.60.1 General

(1) Ancillary Building and Structure - Compliance

In the E zone, **ancillary buildings** and **structures** must comply with the requirements for a **building** or **structure**.

60.20.60.10 Location

(1) Location of Buildings or Structures Used for the Purpose of a Gatehouse, Scale, Weigh-house, Fire Pump House or Other Security Purpose in the E Zone

In the E zone, a **building** or **structure** used as a gatehouse, scale, weigh-house, fire pump house or other security purpose is:

- (A) permitted in the **front yard**; and
- (B) not subject to the required minimum **front yard**, **side yard** and **rear yard building setbacks**.

60.20.80 Parking

60.20.80.20 Setbacks

(1) Parking Space to be Set Back from a Lot Line

A **parking space** that is not in a **building** or **structure** must be at least 0.5 metres from a **lot line**.

60.20.90 Loading

60.20.90.10 Location

(1) Loading Space Location

A **loading space** may not be in:

- (A) a **front yard**;
- (B) a **side yard** abutting a **street**; or
- (C) any **side yard** or **rear yard** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

60.20.90.11 Location Exemptions

(1) Loading Space Location Exemption

If a **lawfully existing building** has a **lawful loading space** that does not comply with the **loading space** location requirements in regulation 60.20.90.10(1), that **lawful loading space** is exempt from regulation 60.20.90.10(1).

60.20.90.40 Access to Loading Space

(1) Access to Loading Space on a Lot in the E Zone

In the E zone:

- (A) if a **lot** abuts a **lane**, **vehicle** access to a **loading space** must be from the **lane**;
- (B) if a **corner lot** does not abut a **lane** and it has at least one **lot line** abutting a **street** which is not a major **street** on the Policy Areas Overlay Map, **vehicle** access to a **loading space** must be from the **street** which is not a major **street**; and
- (C) if a **lot** is not a **lot** described in (A) or (B), **vehicle** access to a **loading space** may be from the **street** on which the **lot** fronts.

(2) Access Through a Main Wall to a Loading Space

A **loading space** located in a **building** may not have its **vehicle** access through a **main wall** that faces a **street**.

60.20.90.41 Access to Loading Space Exemptions

(1) Access to Loading Space Exemption for Buildings on Lots in the E Zone

In the E zone, if a **lawfully existing building** has a **lawful** entrance to a **loading space** that does not comply with regulation 60.20.90.40(1) or Article 220.5.20, that **lawful** entrance is permitted.

(2) Access Through a Main Wall to a Loading Space Exemption

If a **lawfully existing building** has a **lawful** entrance to a **loading space** in a **main wall** facing a **street**, that **lawful loading space** is exempt from regulation 60.20.90.40(2).

60.30 Employment Heavy Industrial Zone (EH)

60.30.1 General

60.30.1.10 Interpretation

(1) Application of This Section

The regulations in Section 60.30 apply to all lands, uses, **buildings** and **structures** in the EH zone.

(2) Interpretation of the Employment Heavy Industrial Zone Symbol

The zone symbol on the Zoning By-law Map for the Employment Heavy Industrial Zones consists of the letters EH, indicating the primary land use permitted in the respective zone.

(3) Interpretation of the EH Zone Label

In the EH zone, the numerical value following the zone symbol in the zone label, on the Zoning By-law Map, represents the permitted maximum floor space index of all land uses on a **lot**.

60.30.20 Permitted Uses

60.30.20.1 General

(1) Existing Place of Worship

In the EH zone, a **lawfully existing place of worship** is permitted if it is on a **lot** with a **front lot line** or **side lot line** abutting a major **street** on the Policy Area Overlay Map; and

(A) any expansion or addition to the **place of worship building** must comply with Section 150.50 and the requirements for the EH zone; and

(B) it may be replaced with a new **place of worship building** if it complies with Section 150.50 and the requirements for the EH zone.

60.30.20.10 Permitted Use

(1) Use - EH Zone

In the EH zone, the following uses are permitted:

Ambulance Depot

Animal Shelter

Bindery

Building Supply Yards

Carpenter's Shop

Chemical Materials Storage

Cold Storage

Contractors Establishment

Custom Workshop

Dry Cleaning or Laundry Plant

Fire Hall

Fuel Storage

Industrial Sales and Service Use

Laboratory

All **Manufacturing Uses** except:

1) Ammunition, Firearms or Fireworks Factory;

2) Crude Petroleum Oil or Coal Refinery;

3) Explosives Factory;

4) Tannery

Police Station

Public Utility

Public Works Yard
Recovery Facility
Service Shop
Shipping Terminal
Vehicle Depot
Vehicle Repair Shop
Warehouse
Waste Transfer Station [By-law: OMB PL130592]

60.30.20.20 Permitted Use - with Conditions

(1) Use with Conditions - EH Zone

In the EH zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 60.30.20.100:

Cogeneration Energy (10)
Crematorium (14)
Marihuana production facility (3)
Open Storage (1)
Outside Operations (2)
Propane Transfer, Handling and Storage Facility (9)
Renewable Energy (10)
Transportation Use (12)
Vehicle Service Shop (5,13)
[By-law: 0403-2014] [By-law: 1124-2018]

60.30.20.100 Conditions

(1) Open Storage

In the EH zone:

(A) **open storage** must:

- (i) not encroach into a required minimum **building setback**; and
- (ii) be enclosed by a fence; and

(B) **open storage** may be for **recyclable material** or waste.

(2) Outside Operations

In the EH zone, outside operations:

- (A) must be combined with a permitted **manufacturing use**;
- (B) may not encroach into a required minimum **building setback**; and
- (C) must be enclosed by a fence.

(3) Marihuana Production Facility

In the EH zone, a **marihuana production facility** must comply with the specific use regulations in Section 150.60. [By-law: 607-2015] [By-law: 1124-2018]

(4) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(5) Vehicle Service Shop

In the EH zone, a **vehicle service shop** must comply with the specific use regulations in Section 150.94.

(6) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(7) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(8) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(9) Propane Transfer, Handling and Storage Facility

In the EH zone, a propane transfer, handling and storage facility pertains to facilities which transfer, handle, or store propane in quantities equal to or greater than 5,000 U.S. Water Gallons (USWG) on the **lot**, and:

(A) may be on a **lot** that is at least 500 metres from a **lot** in the Residential Zone category, Residential Apartment Zone category, Commercial Zone category, Commercial Residential Zone category, Commercial Residential Employment Zone category, Institutional Zone category, or Open Space Zone category; and

(B) is not a permitted **manufacturing use** that involves propane in the manufacturing process, or in the operation of equipment or **vehicles** that is not subject to regulation (A) above.

(10) Renewable Energy Production or Cogeneration Energy Production

In a EH zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(11) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(12) Transportation Use

A **building** or **structure** on a **lot** in the EH zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(13) Vehicle Service Shop - Open Storage

In the EH zone, a **vehicle service shop** may have **open storage** if it is:

(A) less than 20% of the area of the **lot** that is not covered by wholly enclosed **buildings**; and

(B) enclosed by a fence.

(14) Crematorium

In the EH zone, a **crematorium** must be a minimum of 300 metres from a **lot** that is not in the EL, E, EH or UT zone.

60.30.30 Lot Requirements

60.30.30.20 Lot Frontage

(1) Minimum Lot Frontage for Lots in the EH zone

In the EH zone, the required minimum **lot frontage** is 30.0 metres.

60.30.30.21 Lot Frontage Exemptions

(1) Permitted Lot Frontage for Lawfully Existing Lots

In the EH zone, if the **lawful lot frontage** of a **lawfully existing lot** is less than the required minimum **lot frontage**, that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 60.30.30.21(1) must comply with all other applicable regulations of this By-law or be authorized by a Section 45 Planning Act minor variance.

60.30.40 Principal Building Requirements

60.30.40.10 Height

(1) Maximum Height - EH Zone

In the EH zone, if a **lot** is in an area that:

(A) has a numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of any **building** or **structure** on the **lot** is the numerical value following the letters "HT", in metres; or

(B) has no numerical value following the letters "HT" on the Height Overlay Map, no height requirement applies.

(2) Height of Buildings and Structures - Green Roof

In the EH zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

60.30.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the EH zone, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height, that **lawful** height is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings -- Height

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 60.30.40.11(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

60.30.40.70 Setbacks

(1) Minimum Front Yard Setback for Lots in the EH Zone

In the EH zone, the required minimum **front yard setback** is 3.0 metres.

(2) Minimum Side Yard Setback for Lots in the EH Zone

In the EH zone, the required minimum **side yard setback** is 3.0 metres.

(3) Minimum Rear Yard Setback for Lots in the EH Zone

In the EH zone, the required minimum **rear yard setback** is 7.5 metres.

(4) Minimum Building Setback for Lots in the EH Zone abutting the Residential Zone Category or the Residential Apartment Zone Category

In the EH zone:

(A) the required minimum **building setback** from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category is 15.0 metres; and

(B) a **structure** that is not a **building** may be no closer than 15.0 metres from a **lot line** that abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category.

(5) Building Setback Exemptions for Loading at Railway Tracks in an EH zone

Despite regulations 60.30.40.70(2) and (3), in the EH zone, a **building** or **structure** used for loading or unloading of railway cars at railway tracks has no required minimum **building setback** from a **side lot line** or **rear lot line** that abuts the railway right-of-way.

60.30.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the EH zone, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

(A) a **front lot line**, that **lawful front yard setback** is the minimum **front yard setback** for that **lawfully existing building** or **structure**;

(B) a **rear lot line**, that **lawful rear yard setback** is the minimum **rear yard setback** for that **lawfully existing building** or **structure**; or

(C) a **side lot line**, that **lawful side yard setback** is the minimum **side yard setback** permitted for that **lawfully existing building or structure**.

(2) Required Setbacks for Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building or structure** referred to in regulation 60.30.40.71(1) may be set back from a **front lot line**, **rear lot line** or side lot lines to the same extent as the **main walls** of **the lawfully existing building or structure** be authorized by a Section 45 Planning Act minor variance. [By-law: 420-2023]

(3) Transportation Use Along Eglinton Avenue West and Eglinton Avenue East

Regulations 60.30.40.70(1)(2)(3) and (4) do not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that setbacks are between 0 and 300 metres. [103-2016] [By-law: 1031-2014] [By-law: 1268-2023]

60.30.60 Ancillary Buildings and Structures

60.30.60.1 General

(1) Ancillary Building and Structure - Compliance

In the EH zone, **ancillary buildings** and **structures** must comply with the **building** and **structure** regulations of this zone.

60.30.90 Loading

60.30.90.10 Location

(1) Loading Space Location

A **loading space** may not be in a yard that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

60.40 Employment Industrial Office Zone (EO)

60.40.1 General

60.40.1.10 Interpretation

(1) Application of This Section

The regulations in Section 60.40 apply to all lands, uses, **buildings** and **structures** in the EO zone.

(2) Interpretation of the Employment Industrial Office Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Employment Industrial Office Zones consists of the letters EO indicating the primary land use permitted in the respective zone.

(3) Interpretation of the EO Zone Label

In the EO zone, the letters following the zone symbol in the zone label have the following meaning:

(A) a numerical value representing the permitted maximum floor space index of all land uses on a **lot** and that may be followed by one or both of the following in brackets:

- (i) the letter "e" and a numerical value indicating the permitted maximum floor space index for employment industrial uses on a **lot**; and
- (ii) the letter "o" and a numerical value indicating the permitted maximum floor space index for office and other non-employment industrial uses on a **lot**.

(4) Medical Office

In the EO Zone, a medical office includes a medical clinic.

60.40.20 Permitted Uses

60.40.20.1 General

(1) Sorting Activities in an Enclosed Building

In the EO zone, the separating or sorting of **recyclable materials** must take place within a wholly enclosed **building**.

60.40.20.10 Permitted Use

(1) Use - EO Zone

In the EO zone:

(A) the following uses are permitted under the letter "e" in the zone label referred to in regulation 60.40.1.10(3)(A)(i):

Ambulance Depot
Animal Shelter
Artist Studio
Bindery
Carpenter's Shop
Cold Storage
Custom Workshop
Dry Cleaning or Laundry Plant
Fire Hall
Industrial Sales and Service Use
Laboratory
Police Station
Printing Establishment
Production Studio

Self-storage Warehouse
Service Shop
Veterinary Hospital
Warehouse
Wholesaling Use

- (B) the following uses are permitted under the letter "o" in the zone label referred to in regulation 60.40.1.10(3)(A)(ii):

Art Gallery
Automated Banking Machine
Club
Community Centre
Education Use
Financial Institution
Library
Massage Therapy
Medical Office
Municipal Shelter
Museum
Office
Park
Passenger Terminal
Performing Arts Studio
Software Development and Processing
Wellness Centre [By-law: 545-2019]

60.40.20.20 Permitted Use - with Conditions

(1) Use with Conditions - EO Zone

In the EO zone:

- (A) the following uses are permitted under the letter "e" in the zone label referred to in regulation 60.40.1.10(3)(A)(i) if they comply with the specific conditions associated with the reference number(s) for each use in Clause 60.40.20.100:

Apparel and Textile **Manufacturing Use**(3)
Beverage **Manufacturing Use** (3)
Clay Product **Manufacturing Use** (3)
Cogeneration Energy (24)
Computer, Communications, Electronics, or Optical Media **Manufacturing Use** (3)
Contractor's Establishment (2)
Food **Manufacturing Use** (3)
Furniture **Manufacturing Use**(3)
Medical Equipment and Supplies **Manufacturing Use** (3)
Metal Products **Manufacturing Use** (3)
Open Storage (13)
Pharmaceutical and Medicine **Manufacturing Use** (3)
Plastic Product **Manufacturing Use** (3)
Public Utility (25,27)
Renewable Energy (24)
Transportation Product and **Vehicle Manufacturing Use** (3)
Transportation Use (26)

- (B) the following uses are permitted under the letter "o" in the zone label referred to in regulation 60.40.1.10(3)(A)(ii) if they comply with the specific conditions associated with the reference number(s) for each use in Clause 60.40.20.100:

Drive Through Facility (10,18)
Eating Establishment (1,16,20,28)
Hotel (5)
Outdoor Patio (14)
Personal Service Shop (6)
Place of Assembly (11,19)
Place of Worship (29, 30)
Public Parking (8,9)
Recreation Use (7)
Retail Service (6)
Retail Store (6, 23, 28)
Take-out Eating Establishment (1,20,28)
Vehicle Fuel Station (21,28) [By-law: 545-2019] [By-law: 1198-2019]

60.40.20.100 Conditions

(1) Eating Establishment and Take-out Eating Establishment

In the EO zone, the total **interior floor area** of all **eating establishments** and **take-out eating establishments** on a **lot** may not exceed 500.0 square metres. [By-law: 1198-2019]

(2) Contractor's Establishment

In the EO zone, a **contractor's establishment** may not store heavy equipment, such as cranes, ploughs, tractors, pile drivers, road making, wrecker's or steel erector's equipment.

(3) Manufacturing Use- Interior Floor Area

In the EO zone, the **interior floor area** of **manufacturing uses** listed in Clause 60.40.20.20 on the **lot** must be the lesser of:

- (A) 5,000 square metres; or
- (B) the permitted maximum floor space index for the **lot** according to the numerical value after an "e" in the zone label.

(5) Hotel

In the EO zone, a **hotel** must be on a **lot** that fronts a major **street** on the Policy Areas Overlay Map.

(6) Retail Service, Retail Store or Personal Service Shop

In the EO zone, the total **interior floor area** of **retail services**, **retail stores** or **personal service shops** on a **lot** may not exceed the greater of:

- (A) 300.0 square metres; or
- (B) 10 percent of the **gross floor area** of the **buildings** on the **lot** to a maximum of 500.0 square metres.
[By-law: 1198-2019]

(7) Recreation Use

In the EO zone, a **recreation use** must be on a **lot** that fronts a major **street** on the Policy Areas Overlay Map.

(8) Public Parking - Abutting a Lot in the Residential Zone Category or Residential Apartment Zone Category

In the EO zone, if a **lot** with **public parking** abuts a **lot** in the Residential Zone category or Residential Apartment Zone category:

- (A) **vehicle** access to the **public parking** may not be over any part of a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (B) any part of a **lot line** abutting a **lot** in the Residential Zone category or Residential Apartment Zone category must be fenced; and
- (C) an area used for the parking or storage of a **vehicle** must be at least 3.0 metres from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

(9) Public Parking Attendant Shelter

In the EO zone, one **building** for parking attendants is permitted on a **lot** with a **public parking** use if it:

- (A) has a maximum height of 4.0 metres, including all mechanical equipment;
- (B) has a maximum **interior floor area** of 5.0 square metres; and
- (C) is at least 6.0 metres from a **lot line** abutting a **street**.

(10) Drive Through Facility

In the EO zone, a **drive through facility** must be on a **lot** that fronts on a major **street** on the Policy Areas Overlay Map.

(11) Place of Assembly

In the EO zone, a **place of assembly** must be on a **lot** that has a zone symbol with an "o" value of 1.5 or greater. [By-law: 1353-2015]

(12) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(13) Open Storage

In the EO zone,

(A) **open storage**:

- (i) must be associated with a permitted use;
- (ii) may not be located in a yard that abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category;
- (iii) may not be located in the **front yard** of the **lot**;
- (iv) must be located a minimum of 7.5 metres from any **lot line**;
- (v) may not be more than 10% of the **lot area**;
- (vi) may not be more than the permitted maximum height of a **building**; and
- (vii) must be enclosed by a fence; and

(B) **open storage** may be for **recyclable material** and waste.

(14) Outdoor Patio

In the EO zone, an **outdoor patio**:

- (A) must be combined with a permitted use and be located on the same **lot** or abutting **lot** that permits an **outdoor patio**;
- (B) must be no closer to a **lot line** than the required **rear yard setback** or **side yard setback** for a **building**;
- (C) may not be located on land required for **loading spaces**, **driveways**, or **landscaping**;
- (D) may have a maximum area that is the greater of:
 - (i) 50.0 square metres; or
 - (ii) 50 percent of the **interior floor area** of the **premises** it is combined with.
- (E) may be used to provide entertainment such as performances, music and dancing, if it is located on a **lot** abutting a major **street** on the Policy Areas Overlay Map, and provided the **outdoor patio** is not located above the first **storey** of the **building** and the entertainment area does not exceed the greater of 10 percent of the **outdoor patio** area or 5.0 square metres;
- (F) must be set back at least 30.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (G) despite regulation (F) above, an **outdoor patio** located above the first **storey** of the **building**, must be at least 40.0 metres, measured horizontally, from a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (H) in the **rear yard** of a **lot** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category the **outdoor patio** must have a fence installed along the portion of the **outdoor patio** parallel to the **rear lot line**; and
- (I) if a **lawfully existing outdoor patio** is closer to a **lot** than required in (F) or (G) above, that **lawful** distance from a **lot** in the Residential Zone category or Residential Apartment Zone category is the minimum distance for that **lawfully existing outdoor patio** from that **lot**. [By-law: 1153-2023]

(15) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(16) Eating Establishment

In the EO zone, an **eating establishment** must comply with the specific use regulations in Section 150.100.

(17) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(18) Drive Through Facility

In the EO zone, a **drive through facility** must comply with the specific use regulations in Section 150.80.

(19) Place of Assembly - Banquet Hall

In the EO zone, a **place of assembly** that is a banquet hall with an **interior floor area** greater than 1,000 square metres must be at least 300 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category. This regulation does not apply if the banquet hall is combined with a **hotel**.

(20) Eating Establishment and Take-out eating Establishment- Amusement Device

In the EO zone, an **eating establishment** or **take-out eating establishment** with an **interior floor area** of at least 130 square metres may have a maximum of 2 **amusement devices**.

(21) Vehicle Fuel Station

In the EO zone, a **vehicle fuel station** must comply with the specific use regulations in Section 150.92.

(23) Retail Store - together with Manufacturing Use

In the EO zone, a **retail store** on a **lot** with a **manufacturing use**:

- (A) must be associated with a permitted **manufacturing use** on the same **lot**; and
- (B) the total **interior floor area** of all retail stores on a **lot** may not exceed 20 percent of the **gross floor area** of the permitted **manufacturing use**. [By-law: 1198-2019 as amended by By-law 803-2020] [By-law: 803-2020]

(24) Renewable Energy Production or Cogeneration Energy Production

In the EO zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(25) Public Utility

In the EO zone, a **public utility** may not be a sewage treatment plant.

(26) Transportation Use

A **building** or **structure** on a **lot** in the EO zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(27) Public Utility

In the EO zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building**:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(28) Retail Store - together with a Vehicle Fuel Station

In the EO zone:

- (A) a **retail store** on a lot with a **vehicle fuel station** is subject to the following:
 - (i) the **retail store** must be a convenience store;
 - (ii) the **interior floor area** of the **vehicle fuel station**, **retail store**, **eating establishment** or **take-out eating establishment** may not exceed 300 square metres; and
 - (iii) the convenience **retail store** may remain on the **lot** as long as the **vehicle fuel station** use exists; and
- (B) For the purposes of regulation (A) above, a convenience store may sell products such as engine oil, washer fluid, road salt, packaged or canned food products, newspapers and magazines. [By-law: 1774-2019]

(29) Place of Worship

In the EO zone, a **place of worship** must comply with the specific use requirements of Section 150.50.

(30) Place of Worship - Interior Floor Area and Major Street

In the EO zone, a **place of worship**:

- (A) may not have an **interior floor area** that exceeds 5,000 square metres; and
- (B) must be on a **lot** with a **front lot line** or **side lot line** abutting a major **street** on the Policy Area Overlay Map.

60.40.30 Lot Requirements

60.40.30.20 Lot Frontage

(1) Minimum Lot Frontage for Lots in a EO zone

In the EO zone, the required minimum **lot frontage** is 30.0 metres.

60.40.30.21 Lot Frontage Exemptions

(1) Permitted Lot Frontage for Lawfully Existing Lots

In the EO zone, if the **lawful lot frontage** of a **lawfully existing lot** is less than the required minimum **lot frontage**, that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 60.40.30.21(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

60.40.40 Principal Building Requirements

60.40.40.10 Height

(1) Maximum Height - EO Zone

If a **lot** in the EO zone is in an area that:

- (A) has a numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is the numerical value following the letters "HT", in metres; or
- (B) has no numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is 30.0 metres.

(2) Height of Buildings and Structures - Green Roof

In the EO zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

60.40.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the EO zone, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height, that **lawful** height is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings - Height

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 60.40.40.11(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

60.40.40.70 Setbacks

(1) Minimum Front Yard Setback for Lots in the EO Zone

In the EO zone, the required minimum **front yard setback** is 9.0 metres.

(2) Minimum Side Yard Setback for Lots in the EO Zone

In the EO zone, the required minimum **building setback** from a **side lot line**:

(A) that does not abut a **street**, is:

- (i) 4.5 metres, if the **lot frontage** is less than 60.0 metres;
- (ii) 6.0 metres in all other cases; and

(B) that abuts a **street**, is 9.0 metres.

(3) Minimum Rear Yard Setback for Lots in the EO Zone

In the EO zone, the required minimum **rear yard setback** is 7.5 metres.

(4) Minimum Building Setback for Lots in the EO Zone abutting the Residential Zone Category or the Residential Apartment Zone Category

In the EO zone:

- (A) the required minimum **building setback** from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category is 15.0 metres; and
- (B) a **structure** that is not a **building** may be no closer than 15.0 metres from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

60.40.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the EO zone, if the **building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

- (A) a **front lot line**, that **lawful front yard setback** is the minimum **front yard setback** for that **lawfully existing building** or **structure**;
- (B) a **rear lot line**, that **lawful rear yard setback** is the minimum **rear yard setback** for that **lawfully existing building** or **structure**; or
- (C) a **side lot line**, that **lawful side yard setback** is the minimum **side yard setback** for that **lawfully existing building** or **structure**.

(2) Required Setbacks for Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 60.40.40.71(1) may be set back from the **front lot line**, **rear lot line** or **side lot lines** to the same extent as the **main walls** of the **lawfully existing building** or **structure** or be authorized by a Section 45 Planning Act minor variance.

60.40.50 Yards

60.40.50.10 Landscaping

(1) Soft Landscaping- Street Lot Line Requirement

In the EO zone, any **lot line** abutting a **street** must have a minimum 3.0 metre wide strip of **soft landscaping** along the entire length of the **lot line**, exclusive of **driveways** and walkways.

60.40.60 Ancillary Buildings and Structures

60.40.60.1 General

(1) Ancillary Buildings and Structures - Compliance

In the EO zone, **ancillary buildings** and **structures** must comply with the requirements for a **building** or **structure**.

60.40.60.10 Location

- (1) Location of Buildings or Structures Used for the Purpose of a Gatehouse, Scale, Weigh-house, Fire Pump House or Other Security Purpose in an EO Zone

In the EO zone, a **building** or **structure** used as a gatehouse, scale, weigh-house, fire pump house or other security purpose is:

- (A) permitted in the **front yard**; and
- (B) not subject to required minimum **front yard**, **side yard** and **rear yard building setbacks**.

60.40.80 Parking

60.40.80.20 Setbacks

- (1) Parking Space to be Set Back from a Lot Line

A **parking space** not in a **building** or **structure** must be at least 0.5 metres from a **lot line**.

60.40.90 Loading

60.40.90.10 Location

- (1) Loading Space Location

A **loading space** may not be in:

- (A) a **front yard**;
- (B) a **side yard** abutting a **street**; or
- (C) a **side yard** or **rear yard** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

60.40.90.11 Location Exemptions

- (1) Loading Space Location Exemption

If a **lawfully existing building** has a **lawful loading space** that does not comply with the **loading space** location requirements in regulation 60.40.90.10(1), that **lawful loading space** is exempt from regulation 60.40.90.10(1).

60.40.90.40 Access to Loading Space

- (1) Access to Loading Space on a Lot in an EO Zone

In the EO zone:

- (A) if a **lot** abuts a **lane**, **vehicle** access to a **loading space** must be from the **lane**;
- (B) if a **corner lot** does not abut a **lane** and it has at least one **lot line** abutting a **street** which is not a major **street** on the Policy Areas Overlay Map, **vehicle** access to a **loading space** must be from the **street** which is not a major **street**; and
- (C) if a **lot** is not a **lot** described in (A) or (B), **vehicle** access to a **loading space** may be from the **street** on which the **lot** fronts.

- (2) Access Through a Main Wall to a Loading Space

A **loading space** may not have its **vehicle** access through a **main wall** that faces a **street**.

60.40.90.41 Access to Loading Space Exemptions

(1) Existing Access to Loading Space Exemption for Buildings on Lots in the EO Zone

In the EO zone, if a **lawfully existing building** has a **lawful vehicle** access to a **loading space** that does not comply with regulation 60.40.90.40(1), or Article 220.5.20, that **lawful vehicle** access is exempt from regulation 60.40.90.40(1) and Article 220.5.20. [By-law: 1124-2018]

(2) Access Through a Main Wall to a Loading Space Exemption

If a **lawfully existing building** has a **lawful loading space** access in a **main wall** that faces a **street**, that **lawful loading space** access is exempt from regulation 60.40.90.40(2).